

23STCV11253 23STCV11253

County: los-angeles

Division: Civil Law and Motion

Department: 730

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Case Number: 23STCV11253 Hearing Date: August 12, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

SAEED

MASJEDI

Plaintiff,

vs.

ELIZABETH

VALDEZ

Defendant.

Case No.:

23STCV11253

Hearing

Date:

August 12, 2026

[TENTATIVE]

ORDER DENYING MOTION TO DISMISS THE
CROSS-COMPLAINT

I. BACKGROUND

Defendant Elizabeth Valdez

(“Valdez”) allegedly undertook a retaliatory harassment campaign against Plaintiff Saeed Masjedi (“Masjedi”), her tenant, after Masjedi reported a plumbing problem. Masjedi sued Valdez for intentional tort and statutory liability.

On February 2, 2024, Valdez filed a Cross-Complaint against Masjedi for three causes of action, alleging Masjedi harassed Valdez.

On May 15, 2026, Masjedi filed the instant motion to dismiss the cross-complaint. Valdez filed an opposition.

II. JUDICIAL NOTICE

The Court takes judicial notice of all judicial records on file in this case, pursuant to Masjedi’s request.

III. LEGAL STANDARD

Code of Civil Procedure section 418.10, subdivision (a)(1),^[1] holds that a defendant, on or before the last day of his or her time to pleading or within any further time that the court may for good cause allow, may serve and file a notice of motion to quash service of summons on the lack of the court’s jurisdiction over defendant.

III. DISCUSSION

A.
Request for

Relief under Section 415.20.

Masjedi first requests the Court dismiss the Cross-Complaint pursuant to section 415.20, on the basis Valdez's process-server failed to first attempt to serve Masjedi personally before resorting to substitute service. Section 415.20 provides that if a copy of the summons and complaint cannot be personally delivered via reasonable diligence, substitute service may be effectuated. (§ 415.20, subd. (b)). However, section 415.20 does not provide an enforcement mechanism; section 418.10 does. Section 418.10 allows a defendant to bring a motion to quash service on the lack of jurisdiction, due to improper service of the complaint, within the time to plead or, within any further time that the court may for good cause allow.

Valdez served Masjedi with the complaint via substitute service on March 21, 2024. Pursuant to section 415.20, subdivision (b), service of summons via substitute service is deemed complete on the 10th day after mailing; the deadline to respond is 30 days after completed service. Therefore, any motion to quash was due by April 30, 2024—over two years prior to Masjedi filing the motion to dismiss.

The Court will only consider a motion to quash after this point upon a finding of good cause. Here, the Court does not find good cause. Masjedi has been on notice as to the existence of this Cross-Complaint since at least May 23, 2024, when Masjedi filed his first "Motion to Dismiss" the Cross-Complaint. At that time, Masjedi moved to dismiss solely on the basis of section 425.16 and Civil Code section 47, subdivision (b). After the Court denied the motion, Masjedi moved to vacate the Court's ruling under sections 663 and 473. The Court also denied this motion, finding Masjedi was attempting to relitigate previously decided issues. Masjedi then appealed the Court's ruling. The Court of Appeal denied the appeal and affirmed the Court's order.

Following resolution of appeal, Masjedi filed a motion to "Amend and Conform" the Cross-Complaint under section 128, subdivision (a)(3). (See 12/30/25 "Motion for an Order to Amend and Conform".) This motion argued, in part, the substituted service was invalid and the Court needed to dismiss the Cross-Complaint. The Court denied the motion, finding Masjedi was attempting to relitigate the previously denied motion to dismiss, without basis.

Here, it is clear that Masjedi was served with the

Cross-Complaint in such a manner that Masjedi was able to actively litigate the Cross-Complaint over the course of two years. Only after Masjedi's other motions to dismiss were repeatedly rejected did Masjedi seek to dismiss the Cross-Complaint on these grounds. It is clear to the Court that Masjedi has appeared before this Court and agreed to the Court adjudicating this matter. Therefore, the Court does not find good cause to evaluate or potentially grant a motion to quash service.

B. All

Other Requests

Masjedi otherwise moves under section 663, 473, and 1008, none of which are applicable here.

Masjedi has already moved for the requested relief pursuant to section 663 and 473 via Masjedi's July 3, 2024, improperly titled Motion to Set Aside/Vacate Default. Masjedi requested the Court vacate the June 18, 2024, Court order denying the motion to dismiss the Cross-Complaint and replace it with an order dismissing the Cross-Complaint, on the basis the Court reached the wrong conclusion due to the substitute service issue. The Court found the motion without merit under both section 473 or the more appropriate 1008, and totally inapplicable to section 663. (See 8/28/24 'Minute Order'.)

The Court rules the same here. Masjedi has not provided valid argument to support relief under any of the request statutes. Masjedi is merely attempting to relitigate previously addressed issues without any new law or facts to support the request, as required under section 1008.

The Court denies the motion, with prejudice. Further filing of motions on the same grounds will be subject to sanction.

IV. CONCLUSION

Plaintiff Saeed Masjedi's motion to dismiss the cross-complaint is DENIED, with prejudice.

Valdez is ordered to give notice.

DATED:

August 12, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.